

STATE OF NEW YORK

8062--B

Cal. No. 399

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sens. WEBB, JACKSON, OBERACKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading -- reported favorably from said committee to third reading, amended and ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law and the public authorities law, in relation to requiring certain utility corporations and the Long Island power authority to establish a meter usage monitoring program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 39-a to read as follows:

3 § 39-a. Meter usage monitoring program. 1. The commission shall
4 require any utility corporation utilizing advanced metering infrastruc-
5 ture to establish a usage monitoring program for the purposes of notify-
6 ing residential customers when such utility usage exceeds a usage thresh-
7 old, as determined by such residential customer, in a given billing
8 period. The usage monitoring program shall notify residential customers
9 electronically or by mail when half of their determined energy usage
10 threshold is met, and when their usage threshold exceeds their deter-
11 mined threshold. Such notification shall include an estimate of their
12 monthly bill.

13 2. The usage monitoring program shall be an elective program for resi-
14 dential customers and designed to provide such residential customers

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 with daily updates on their utility usage. Such usage information shall
2 be accessible to the customer online within such customer's online
3 account.

4 3. The usage monitoring program shall at a minimum include the follow-
5 ing:

6 (a) the ability to select to enroll or disenroll from the usage moni-
7 toring program;

8 (b) the ability to set a monthly usage threshold that is measured in
9 kilowatt hours (kWh), therms, hundred cubic feet (CCF), in gallons or in
10 the measurement usage that is currently provided by such utility corpo-
11 ration on the customer's monthly billing statement; and

12 (c) the ability for a participating customer or enrolling customer to
13 select the manner through which they will receive notification of their
14 usage status pursuant to subdivision one of this section.

15 4. The commission shall, with respect to the protection of customer
16 data, at a minimum ensure:

17 (a) any customer data collected pursuant to such usage monitoring
18 program shall only include personal identifying information necessary to
19 effectively administer this program;

20 (b) no customer data collected pursuant to the usage monitoring
21 program may be sold or shared except as set forth in paragraph (c) of
22 this subdivision;

23 (c) participating customer data may be shared with law enforcement
24 only pursuant to a valid judicial warrant or judicial subpoena; and

25 (d) customer data shall be safely stored and securely encrpyted, be
26 destroyed within thirty days after intended use unless retention is
27 otherwise required to comply with federal, state, or local laws, rules,
28 or regulations, and be subject to any other additional cybersecurity
29 protections the commission deems necessary to protect customers and
30 customer data.

31 § 2. Title 1-A of article 5 of the public authorities law, as added by
32 chapter 517 of the laws of 1986, is amended by adding a new section
33 1020-nn to read as follows:

34 § 1020-nn. Meter usage monitoring program. The authority shall develop
35 and implement a usage monitoring program for the purposes of notifying
36 residential customers when such energy usage exceeds a usage threshold
37 as determined by such residential customer, in a given billing period.
38 Such program shall be implemented pursuant to section thirty-nine-a of
39 the public service law.

40 § 3. This act shall take effect one year after it shall have become a
41 law. Effective immediately, the addition, amendment and/or repeal of any
42 rule or regulation necessary for the implementation of this act on its
43 effective date are authorized to be made and completed on or before
44 such effective date.